Statement of Environmental Effects: a secondary dwelling (granny flat)

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Disclaimer. This Statement of Environmental Effects has been prepared as a drafting aid. It must be reviewed, completed and adopted by a suitably qualified person before it is relied on or lodged. It is not a planning assessment, an approval or advice. Items marked 'TO BE COMPLETED' have not been determined from the data supplied.

Generated 2026-10-12; mode: deterministic. Section headings follow Gunnedah Shire Council's Statement of Environmental Effects form (last updated 15 August 2023) and the NSW Planning Portal 'Local development' requirement for an environmental assessment such as a statement of environmental effects. The content requirements in the Environmental Planning and Assessment Regulation 2021 could not be obtained (legislation.nsw.gov.au is blocked): TO BE COMPLETED: check the draft against the Regulation.

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1. Site and context

• Site address: **TO BE COMPLETED** (street address).

• Lot and plan: 3//DP263990.

• Local government area: Gunnedah.

• Zone: RU1 (from the lot data supplied).

• Lot area: 509264 square metres (calculated from the cadastre, not a survey).

• Lot width at the building line: **TO BE COMPLETED** (to be supplied by the author).

• Topography (slope, vegetation, orientation, streetscape): **TO BE COMPLETED** (to be supplied by the author).

• Existing vegetation: **TO BE COMPLETED** (to be supplied by the author).

• Present use of the site: **TO BE COMPLETED** (to be supplied by the author).

• Previous uses of the site: **TO BE COMPLETED** (to be supplied by the author).

• Use of adjoining land: **TO BE COMPLETED** (to be supplied by the author).

• Potentially contaminating land uses (current or previous): **TO BE COMPLETED** (answer the contamination questions on the Council form).

• **TO BE COMPLETED**: Contaminated land: the constraints layer was not checked (obtain the planning certificate).

2. Proposal description

• The proposal is a secondary dwelling (granny flat).

• Description of the development: **TO BE COMPLETED** (description of the development).

• Estimated cost of the development: **TO BE COMPLETED** (required in the DA (NSW Planning Portal)).

• Storeys: **TO BE COMPLETED** (to be supplied by the author).

• Building height: **TO BE COMPLETED** (to be supplied by the author).

• Gross floor area: **TO BE COMPLETED** (to be supplied by the author).

• Setback to the front boundary: **TO BE COMPLETED** (from the site plan).

• Setback to the side boundary: **TO BE COMPLETED** (from the site plan).

• Setback to the rear boundary: **TO BE COMPLETED** (from the site plan).

• Car parking spaces: **TO BE COMPLETED** (from the site plan).

• External materials and finishes: **TO BE COMPLETED** (Council requires samples of colours and materials).

3. Zoning and permissibility

• Zone: RU1.

• **TO BE COMPLETED**: permissibility of the development in the zone under the Local Environmental Plan land use table (the LEP was not obtained)

• Approval pathway check, Development application (DA): Possible. Fallback: required if exempt and complying development turn out not to apply.

• Approval pathway check, Complying development (CDC): Unresolved. Cannot be determined: 22 criteria are unresolved (missing data or documents not obtained).

• Approval pathway check, Exempt development: Not applicable. Exempt development does not cover a new dwelling (inferred from the Portal's exempt list; verify).

• May apply: verify with council or a certifier. This is decision support, not an approval.

• **TO BE COMPLETED**: compatibility with the zone objectives and with adjoining development (LEP zone objectives not obtained)

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4. Relevant planning controls and compliance summary

• Compliance summary for the DA pathway: 0 controls pass, 0 fail, 17 are unresolved and 1 are not applicable.

• **TO BE COMPLETED**: Setback: front (primary frontage): Supply the proposed value (Setback: front (primary frontage)) from the layout/design.

• **TO BE COMPLETED**: Setback: side: Supply the proposed value (Setback: side) from the layout/design.

• **TO BE COMPLETED**: Setback: rear: Supply the proposed value (Setback: rear) from the layout/design.

• **TO BE COMPLETED**: Building height: LEP cl 4.3 / Height of Buildings Map not obtained. DCP 2025 only caps outbuildings (4.8 m in R2) and farm buildings on sites < 10 ha (7 m).

• **TO BE COMPLETED**: Floor space ratio: No floor space ratio is mapped for the lot in the LEP FSR map layer (or the layer was not checked); the LEP text was not obtained.

• **TO BE COMPLETED**: Site coverage: DCP 2025 contains no site coverage, landscaped-area or FSR control for dwelling houses or secondary dwellings (text searched for 'site cover', 'coverage', 'landscaped area', 'floor space').

• **TO BE COMPLETED**: Landscaped area: DCP 2025 contains no site coverage, landscaped-area or FSR control for dwelling houses or secondary dwellings (text searched for 'site cover', 'coverage', 'landscaped area', 'floor space').

• **TO BE COMPLETED**: Secondary dwelling floor area: Supply the principal dwelling floor area and the secondary dwelling floor area.

• **TO BE COMPLETED**: Private open space: Supply the proposed value (Private open space) from the layout/design.

• **TO BE COMPLETED**: Private open space minimum depth: Supply the proposed value (Private open space minimum depth) from the layout/design.

• **TO BE COMPLETED**: Car parking (principal dwelling retained): Confirm on the site plan that the principal dwelling keeps its required spaces.

• **TO BE COMPLETED**: Driveway / crossover width: Supply the crossover width (SA3 DrivewayDesign).

• **TO BE COMPLETED**: Crossover separation from corner/intersection: Supply the proposed value (Crossover separation from corner/intersection) from the layout/design.

• **TO BE COMPLETED**: Driveway maximum grade: Engineering Design Minimum Standards give crossing width/spacing (residential allotments), culvert and gate rules but no driveway grade limits, and no width figure for rural accesses. Council standard drawings (RD0010, RD011, RD012) and AS 2890.1 were not obtained.

• **TO BE COMPLETED**: Stormwater / on-site detention: Provide a stormwater concept/design plan for assessment against the Engineering Standards (no numeric comparison possible here).

• **TO BE COMPLETED**: Bushfire: Commission a BAL assessment by an accredited practitioner and obtain the s10.7 certificate; confirm whether a bush fire safety authority / RFS referral is needed.

• **TO BE COMPLETED**: BASIX certificate: Obtain a BASIX certificate (basix.nsw.gov.au) and supply its number.

Control	Requirement and source	Proposed	Status
Setback: front (primary frontage)	at least 25 m [Gunnedah Shire Council Development Control Plan 2025, p.45: "RU1/RU4/RU6/C3 25m (sealed road) 200m (unsealed road) 10m"]		UNRESOLVED
Setback: side	at least 10 m [Gunnedah Shire Council Development Control Plan 2025, p.45: "RU1/RU4/RU6/C3 25m (sealed road) 200m (unsealed road) 10m"]		UNRESOLVED
Setback: rear	at least 10 m [Gunnedah Shire Council Development Control Plan 2025, p.45: "RU1/RU4/RU6/C3 25m (sealed road) 200m (unsealed road) 10m"]		UNRESOLVED
Building height	LEP cl 4.3 / Height of Buildings Map: not obtained		UNRESOLVED
Floor space ratio	LEP FSR: no citable value		UNRESOLVED
Site coverage	no site coverage control in the DCP obtained		UNRESOLVED

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Control	Requirement and source	Proposed	Status
Landscaped area	no landscaped area control in the DCP obtained		UNRESOLVED
Secondary dwelling floor area	at most 60 m2 (60 m2 or 25% of the principal dwelling, whichever is greater; DCP summary of LEP cl 5.4: secondary citation) [Gunnedah Shire Council Development Control Plan 2025, p.40: "where the total floor area of the secondary dwelling does not exceed 60m2 or 25% of the total floor area of th"]		UNRESOLVED
Private open space	at least 15 m2 [Gunnedah Shire Council Development Control Plan 2025, p.40: "must provide a minimum of 15sqm of private open space directly accessible from the living area and with a mini"]		UNRESOLVED
Private open space minimum depth	at least 3 m [Gunnedah Shire Council Development Control Plan 2025, p.40: "must provide a minimum of 15sqm of private open space directly accessible from the living area and with a mini"]		UNRESOLVED
Car parking (principal dwelling retained)	no additional parking is required for the secondary dwelling, but the principal dwelling must keep its required spaces [Gunnedah Shire Council Development Control Plan 2025, p.16: "Secondary dwellings must not result in the principal dwelling on the site having less than the required car pa"]		UNRESOLVED
Driveway / crossover width	between 3 m and 4.5 m [Gunnedah Shire Council Engineering Design Minimum Standards for Subdivisions and Developments, p.44: "Width of access (excluding layback splays) 3.0 - 4.5m"]		UNRESOLVED
Crossover separation from corner/intersection	at least 6 m [Gunnedah Shire Council Engineering Design Minimum Standards for Subdivisions and Developments, p.44: "Minimum distance from crossing to corner allotment boundary 6m"]		UNRESOLVED
Driveway maximum grade	not found in the obtained documents		UNRESOLVED
Stormwater / on-site detention	stormwater designed per the council Engineering Design Minimum Standards; OSD where post-development flow exceeds existing [Gunnedah Shire Council Development Control Plan 2025, p.43: "All stormwater systems shall be designed and constructed in accordance with Council's Engineering Design Minim"]		UNRESOLVED
Flood: habitable floor level	not applicable: SA9 flood layer reports the lot not affected (map layer only)		NOT APPLICABLE
Bushfire	BAL assessment (AS 3959) and Planning for Bush Fire Protection: documents not obtained, no citable numeric requirement	bushfire prone land (vegetation category / buffer)	UNRESOLVED
BASIX certificate	BASIX certificate required for a new dwelling [NSW Planning Portal: BASIX, p.1: "you will need a BASIX certificate."]	TO BE OBTAINED	UNRESOLVED

5. Environmental impacts

Flood

• Flood planning area: the NSW mapping layer reports the lot as not affected. This is a map layer result, not a planning certificate.

Bushfire

• Bushfire prone land: the NSW mapping layer reports the lot as affected (Category=3, d_Category=Vegetation Category 3). Data currency: source currency 2026-10-03; fetched 2026-10-12; The NSW BFPL Map is collated and merged together from individual NSW loc.

• Bushfire attack level: **TO BE COMPLETED** (BAL assessment by an accredited practitioner (AS 3959)).

Heritage

• Heritage item: the NSW mapping layer reports the lot as not affected. This is a map layer result, not a planning certificate.

• Heritage conservation area: the NSW mapping layer reports the lot as not affected. This is a map layer result, not a planning certificate.

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Amenity (overshadowing, privacy, views)

• Effect on amenity of surrounding residences: **TO BE COMPLETED** (overshadowing (9 am and 3 pm, 21 June, two-storey only) and privacy).

Access and parking

• Road the site is accessed from: **TO BE COMPLETED** (to be supplied by the author).

• Crossover width: **TO BE COMPLETED** (to be supplied by the author).

• Car parking spaces: **TO BE COMPLETED** (to be supplied by the author).

Stormwater

• Stormwater disposal: **TO BE COMPLETED** (street, on-site retention or detention, per the Engineering Design Minimum Standards).

Erosion and sediment control

• **TO BE COMPLETED**: erosion and sediment control plan (Council's Fact Sheet 1 lists it as required for construction works to minimise harm to the environment)

Services and waste

• Electricity supply: **TO BE COMPLETED** (to be supplied by the author).

• Water supply (town supply, rainwater tank, bore): **TO BE COMPLETED** (to be supplied by the author).

• Effluent disposal (sewer or on-site): **TO BE COMPLETED** (to be supplied by the author).

• Waste management: **TO BE COMPLETED** (to be supplied by the author).

• Acid sulfate soils: the NSW mapping layer reports the lot as not affected. This is a map layer result, not a planning certificate.

• Biodiversity: the NSW mapping layer reports the lot as not affected. This is a map layer result, not a planning certificate.

• Riparian land: the NSW mapping layer reports the lot as not affected. This is a map layer result, not a planning certificate.

6. Conclusion

• Against the controls tabulated in section 4, 0 are met, 0 are not met and 17 remain to be resolved.

• **TO BE COMPLETED**: the author's conclusion on the merits of the proposal and its environmental effects

• Prepared by: **TO BE COMPLETED** (name and qualifications of the suitably qualified person who reviews and adopts this statement).

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